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Attorneys for Plaintiff

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Superior Court of California,
County of Los Angeles
5/03/2024 9:15 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES
CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT**

MIDLAND CREDIT MANAGEMENT, INC.

Plaintiff,

vs.

THOMAS TERNUS;

Defendant.

Case No. 24CHLC00819

**DECLARATION RE:
CODE OF CIVIL PROCEDURE § 1033;
INTEREST; AND
EVIDENCE CODE § 1550**

I, the undersigned, declare and state as follows:

1. I am the attorney of record for plaintiff MIDLAND CREDIT MANAGEMENT, INC. ("Plaintiff") in the above entitled action. To the extent that Plaintiff acts in its capacity as successor in interest to the original creditor or its assigns, references herein to Plaintiff may include Plaintiff's predecessor in interest. If called to testify, I could and would competently testify as to all the facts stated in this declaration, except as to those matters testified to upon information and belief, and as to those matters, I believe them to be true.

2. I am an attorney and an employee of Midland Credit Management, Inc. ("MCM"), the servicer of Plaintiff's account. I have access to and have reviewed the electronic records pertaining to the account and am authorized to make this affidavit on Plaintiff's behalf. The electronic records reviewed consist of data acquired from the seller when Plaintiff purchased the account, together with records generated in connection with servicing the account since the day the account was purchased by Plaintiff. In addition, I reviewed the documents that are attached to this affidavit.

1 3. Plaintiff is precluded from filing this case in Small Claims Court per Code of Civil
2 Procedure § 116.420(a).

3 4. The complaint seeks to recover amounts owed by Defendant THOMAS TERNUS
4 ("Defendant"). The underlying account that is the basis of the instant lawsuit is a credit account that
5 Defendant held with creditor SYNCHRONY BANK, account number: XXXXXXXXXXXXX-4999 (the
6 "Account").

7 5. Prior to filing this complaint, all right, title and interest to the Account was sold and
8 assigned to Plaintiff. Plaintiff owns the Account and stands in the place of the original creditor and is
9 entitled to collect on the Account as if it were the original creditor. Additionally, as owner of the
10 Account, Plaintiff can testify to ownership of the Account and the fact that the debt remains unpaid by
11 Defendant.

12 6. Upon my review of the Plaintiff's records as they pertain to Defendant's account, there
13 were previous transactions between the original creditor and Defendant. Defendant agreed to repay the
14 amount due to the original creditor, and there was a valid assignment of the account from the original
15 creditor to Plaintiff. By using the Account, Defendant expressly agreed or impliedly promised to repay
16 Plaintiff.

17 7. Prior to the commencement of this action, as part of our usual course of business, and
18 pursuant to Code of Civil Procedure § 1033(b)(2), Defendant was notified in writing of the intended legal
19 action and that any judgment entered against the Defendant would include attorney's fees and collections
20 costs. A true and correct copy of the letter sent to Defendant is attached hereto as "Exhibit A".

21 8. When Defendant failed to pay the balance due, Plaintiff filed and served the Complaint in
22 this action. Defendant was served with the complaint on January 19, 2024. A proof of service was filed
23 with the court.

24 9. Upon my review of the Plaintiff's records as they pertain to this case, I further certify
25 that no papers or any responsive pleadings have been served on and received by Plaintiff by the
26 party(s) in default, therefore the allegations of the complaint are deemed admitted by law.

27 10. Plaintiff seeks entry of Defendant's default and judgment as set forth in the Request for
28 Entry of Default Judgment, Judicial Council for 982 (a)(6) filed with this Declaration.

11. Filed as part of this default judgment packet is an affidavit pursuant to Code of Civil Procedure section 585. The affidavit and its attached exhibits establish the account and the obligation.

COSTS AND FEES

12. Pursuant to Code of Civil Procedure § 1033(b)(2), Plaintiff is entitled to recover the actual costs of a filing fee and the actual costs of service of process.

13. It is the normal business and procedure of Plaintiff to microfilm, image or store as electronic media all documents provided by Plaintiff's predecessor-in-interest. The records are microfilmed, imaged or stored as electronic media to facilitate storage and are maintained as part of Plaintiff's regular business practice and procedure. Therefore, Plaintiff requests that all copies of documents produced as part of this default judgment packet, including any affidavits and any documents attached thereto, be accepted in lieu of the original pursuant to Evidence Code § 1550.

I declare under penalty of perjury under the laws of California that the foregoing is true and correct.

Date April 10, 2024

MIDLAND CREDIT MANAGEMENT, INC.

By: 

- ☒ ROBERT K. HANNA
- ☐ JUNQIAO XIAO
- ☐ HYU JIN JULIA JUNG
- ☐ MICHAEL D. KAHN
- ☐ LAMONT FREEMAN

EXHIBIT A

MIDLAND CREDIT MANAGEMENT
LEGAL COLLECTIONS DEPARTMENT

MidlandCredit.com
(877)-898-5001

Our Client: Midland Credit Management, Inc.
Original Creditor: SYNCHRONY BANK
Original Account No.: XXXXXXXXXXXX4999
Current Balance: \$3,114.64
Internal Legal Account No.: 23-200184

Michael Kahn, State Bar No. 236898
Hyo Jin Julia Jung, State Bar No. 316090

Thomas Ternus
P1 T13 2811 Chantel Ln
001 Palmdale, CA 93551-1597



11/10/2023

REF: SYNCHRONY BANK
Original Account Number: XXXXXXXXXXXX4999

Dear Thomas Ternus,

As attorneys with Midland Credit Management, Inc. legal department, we are contacting you regarding the collection of the above balance. Your SYNCHRONY BANK Account, owned by Midland Credit Management, Inc., has now been transferred to our legal collections department due to non-payment. We are currently reviewing documentation (including the attached documents) in preparation for filing a lawsuit against you.

Demand is hereby made upon you for the above payment IN FULL—this is the amount due on your original obligation when transferred to our department. Please send payment **Made Payable to Midland Credit Management, Inc.** by 11/20/2023. You may also make a payment online at MidlandCredit.com.

If we do not receive payment IN FULL by 11/20/2023, we intend to file a lawsuit against you, seeking entry of judgment for your account's outstanding balance as well as any incurred and recoverable court costs. We intend to continue our collection efforts through various post-judgment remedies available under your state's laws if a judgment is obtained against you. If you are unable to pay in full by 11/20/2023 please contact our office at (877)-898-5001 to discuss affordable repayment options.

Your prompt attention is necessary to avoid a lawsuit. Please call (877)-898-5001 no later than 11/20/2023. You may also make a payment online at MidlandCredit.com.

Sincerely,
Attorneys for Midland Credit Management, Inc.

P.S. Attached are copies of some of the documents we received from the original creditor regarding this account.

002547

Visit Us Online
MidlandCredit.com
Call (877)-898-5001
Hours of Operation:
M – Fri: 8:00am – 7:30pm EST
Sat: Closed
Sun: Closed

P.O. Box 2121 Warren, MI 48090

PLEASE SEE REVERSE SIDE FOR IMPORTANT DISCLOSURE INFORMATION

Please tear off and return lower portion with payment in the envelope provided

PAYMENT CERTIFICATE

Internal Legal Account Number: 23-200184
Original Account Number: XXXXXXXXXXXX4999
Current Balance: \$3,114.64
Amount Enclosed: \$ _____

Thomas Ternus
2811 Chantel Ln
Palmdale, CA 93551-1597

Payment Options:
1) Pay by phone: (877)-898-5001
2) Mail in this certificate with your payment and make check payable to: Midland Credit Management, Inc.

P.O. Box 2121 Warren, MI 48090



0102400002547
0000 0000

PRE_002

IMPORTANT DISCLOSURE INFORMATION:

Please understand this is a communication from a debt collector. This is an attempt to collect a debt. Any information obtained will be used for that purpose.

Calls to and/or from this company may be monitored or recorded.

MAIL PAYMENTS TO: P.O. Box 2121 Warren, MI 48090

MAIL CORRESPONDENCE TO: P.O. Box 2121, Warren, MI 48090

We are required under state law to notify consumers of the following additional rights. This list does not contain a complete list of the rights consumers have under applicable law:

IF YOU LIVE IN CALIFORNIA, THIS APPLIES TO YOU:

California Code of Civil Procedure §1033(b)(2) requires us to notify you that in the event of legal proceedings, such legal proceedings could result in a judgment against you that could include court costs and necessary disbursements under applicable law, if Midland Credit Management, Inc. is found to be legally entitled to the same.

California license number pending.

PRE_002

THOMAS TERNUS
Account Number : [REDACTED] 4999
Statement Closing Date: 12/13/2022

Cardholder News & Information

If your account has a Deferred Interest promotional balance and you would like a payment to be applied to a specific promotional or non-promotional balance, call Customer Service, no later than 60 days after the transaction date of your payment as shown on your statement, to learn what options may be available.

If you need to contact Synchrony about the loss of a Synchrony cardholder, you can submit a deceased notification form located at www.syl.com under the "Contact Us" page.

* NOTICE: See reverse side and additional pages (if any) for important information concerning your account.

0302 ACJ 1 7 10 221213 EX PAGE 1 of 1 6112 3900 FRN9 01055302

Pay online at mysynchrony.com or enclose this coupon with your check. Please use blue or black ink.

Total Minimum Payment Due	Past Due Amount	Payment Due Date	New Balance	Account Number
\$767.00	\$614.00	01/05/2023	\$3,114.64	4999

[illegible]

☐ New address or e-mail?
Check the box at left and
print changes on back

Payment due includes \$ 614.00 past due. Please pay the past due amount PROMPTLY.

THOMAS TERNUS
2811 CHANTEL LN
PALMDALE CA 93551-1597

Make Payment to: SYNCHRONY BANK
PO BOX 960061
ORLANDO, FL 32896-0061



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